

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On March 24, 2023, Mr. A.A.A. filed a complaint with the Spanish Agency for Data Protection against the GENERAL SECRETARIAT FOR INNOVATION AND QUALITY OF PUBLIC JUSTICE SERVICE, with NIF S2813610I (hereinafter, the complained party). The reasons for the complaint are as follows:

On March 22, 2023, Order PCM/270/2023, dated March 21, was published in the Official State Gazette, which calls for the professional aptitude evaluation test for the practice of law for the year 2023. Among the requirements to participate in these tests, the Order states: "In addition, candidates must attach a current passport-sized photo, which must be sent to the email address acceso.abogacia@mjusticia.es, with the subject line containing the word 'PHOTOGRAPH.' The image must be in a JPG file named after the DNI, NIE, or passport number. Failure to submit this photograph will result in exclusion."

He claims that the Order does not contain a data protection clause for the purposes provided in Article 13 of the GDPR.

He also states that Royal Decree 64/2023, of February 8, which approves the Regulation of Law 34/2006, of October 30, on access to the professions of Law and Advocacy, which regulates the tests, does not require the submission of a photo. The aforementioned Law 34/2006 does not include this requirement either.

He explains that when registering for the test, there is a document on data protection attached, which does not mention the photograph in question. In fact, the basis that would legitimize the processing, according to the document, would be the protection of public interests, without further detail. In practice, the candidate does not know, according to the information provided, why they must submit the photograph.

The complainant indicates that, furthermore, this photograph should not be submitted as an attachment to the application when it is filled out in the Electronic Headquarters of the Ministry of Justice, but rather sent later, according to the Order, by email. Therefore, he questions whether this system complies with the integrity principle of Article 5.1.e) of the GDPR, given that, in addition, the processing of personal photographs in a simple email does not seem to be the best system to guarantee,

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for example, the integrity of the data, or that third parties do not access it through cyberattacks.

On March 22, 2023, the claimant submitted a document to the S.G. OF INSTITUTIONAL COLLABORATION FOR THE PUBLIC SERVICE OF JUSTICE, in which they requested information regarding the processing of the photographs of the candidates.

In the aforementioned document, they stated that "as a candidate who will participate in the tests called and whose personal data (my photograph) is required by the call itself, I do not know the identity and contact details of the data controller, nor of the data protection officer, nor for what purposes the photograph is being collected. I also do not know the legal basis on which the Ministry of Justice requires the submission of this photograph, whether it will be shared, or the duration for which it will be retained. To this end, I hereby request the information referred to in Article 13 of the GDPR concerning the requirement to submit a photograph as an unavoidable condition to participate in the access test."

On March 24, 2023, they submitted a document requesting that a provisional measure be agreed upon to suspend the requirement to provide a photograph to participate in the access test for the legal

profession as set forth in section 5 in fine of Order PCM/270/2023, of March 21, which calls for the evaluation test of professional aptitude for the exercise of the legal profession for the year 2023, or any other measure that, in the opinion of the Agency, ensures the effectiveness of the future resolution; and that the procedure be initiated, agreeing that it be processed through the route of Article 96 of the LPAC.

On April 4, 2023, the respondent issued a letter regarding the request for information that was received by the Ministry on March 22, 2023, indicating the following:

Section 5 of Order PCM/270/2023, of March 21, which regulates the call, states verbatim: "Personal data will be processed in accordance with the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data and in Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights."

Furthermore, in the section prior to entering their personal data in the online registration application for the test, basic information regarding the processing of their personal data carried out by the Ministry of Justice can be consulted, in accordance with the General Data Protection Regulation. We attach this note with the information related to Data Protection.

Along with the complaint, the basic information regarding the processing of personal data carried out by the Ministry of Justice, the registered documents, and the response issued by the respondent are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent, C/ Jorge Juan, 6

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in order for it to proceed with its analysis and inform this Agency within one month, of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP, on May 28, 2023, as stated in the certificate included in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on June 19, 2023. In this notification, the obligation to communicate electronically with the Administration was reminded, and information was provided on the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

No response has been received to this transfer document.

THIRD: On June 24, 2023, in accordance with Article 65 of the LOPDGDD, it is communicated that the complaint has been admitted for processing as three months have elapsed since it was received by the AEPD.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this

organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Principles relating to processing

Letter c) of Article 5.1 of the GDPR advocates:

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"1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');

III

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide all the information indicated below at the time of obtaining such data:

a) the identity and contact details of the controller and, where applicable, of its representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;

e) the recipients or categories of recipients of the personal data, where applicable;

f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time when personal data are obtained, with the following information necessary to ensure fair and transparent processing of data:

a) the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period;

b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of their processing, or to object to the processing, as well as the right to data portability;

c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data.

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the personal data and is informed of the possible consequences of not providing such data;
f) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic applied, as well as the importance and the expected consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any relevant additional information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

IV

Security of Processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying risks of probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data is only able to process such data on instructions from the controller, unless required to do so by Union or Member State law."

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V

Conclusion

In this case, a complaint is made regarding non-compliance with a regulatory provision: Order PCM/270/2023, of March 21, which calls for the professional aptitude evaluation test for the practice of law for the year 2023, published in the Official State Gazette on March 22, 2023.

Among the requirements to participate in these tests, that Order states: "In addition, applicants must attach a current passport-sized photo to be sent to the email acceso.abogacia@mjusticia.es, with the subject line containing the word 'PHOTOGRAPHY'. The image must be in a JPG file named after the DNI, NIE, or passport number. Failure to submit this photograph will result in exclusion."

For its part, the responding party, on April 4, 2023, issued a letter regarding the request for information that was received by the Ministry on March 22, 2023, indicating the following:

Paragraph 5 of Order PCM/270/2023, of March 21, which regulates the call, states verbatim: "Personal data will be processed in accordance with the provisions of Regulation (EU) 2016/679 of the European

Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data and in Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights." Furthermore, in the section prior to entering their personal data in the online registration application for the test, basic information regarding the processing of their personal data carried out by the Ministry of Justice can be consulted, in accordance with the General Data Protection Regulation. We attach this note with the information related to Data Protection.

This Agency is not competent to declare the nullity of provisions and administrative acts such as the requested Order; it will be, if applicable, the contentious-administrative jurisdiction that must rule on the legality of this.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection. All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present proceedings.

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SECOND: NOTIFY this resolution to the GENERAL SECRETARIAT FOR INNOVATION AND QUALITY OF THE PUBLIC JUSTICE SERVICE and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

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